

MASTER SERVICES AGREEMENT

THIS MASTER SERVICES AGREEMENT (“MSA” or “Agreement”) is entered into by and between Hitech iSolutions, a registered corporation in Texas, USA, with its current office at 211 E. 7th Street, Suite 620, Austin TX, 78701-3218, USA (“Hitech”) and Client as named in the Statement of Work (hereinafter interchangeably “Client” or “Customer”). Client and Hitech may be referred to individually as a “Party” and collectively as the “Parties”.

WHEREAS Hitech is engaged in providing offshore and onshore outsourced business process management services, engineering design support services, 2D & 3D modelling services, design automation services, general CAD/CAM and building information modelling (BIM) services, business intelligence and data analytics services and software development and support services (collectively “Services”) as mentioned in one or more corresponding Statements of Work (each an “SOW”), and which SOW is hereby incorporated herein by this reference.

1. ENGAGEMENT OF HITECH

1.1. Scope of Engagement/Statement of Work.

Client hereby retains Hitech to provide the Services and deliverables as described in one or more the corresponding SOW. Each SOW shall be mutually agreed upon by the Parties hereto. The terms of the SOW shall supersede any conflicting terms of this MSA but only insofar as that particular SOW is concerned.

1.2. Hitech Duties and Responsibilities. With respect to each SOW, Hitech will (a) use reasonable care and skill in performance of the Services and comply with any specification in all material respects as described; (b) use reasonable efforts to perform the Services within the time agreed or as set out, or as soon as is commercially practical as specified; and (c) assign a project manager who shall be responsible for managing the overall project, supervising the day-to-day activities of Hitech personnel performing the Services, reporting, work assignments, and resource allocation.

1.3. Changes and Amendments. Any changes to the obligations of either Party, with respect to the Services or to any other material aspect of this Agreement, shall require a written change order (“**Change Order**”) signed by both Parties for it to become effective, and each Change Order shall then be deemed to be an integral part of the corresponding SOW. The Change Order shall describe the changes and any related fee rate adjustments. Client shall

inform Hitech of any required changes to the Services at the earliest possible time in order for Hitech to understand such changes and their impact on current project deliverables. Hitech will use reasonable effort to accommodate such changes and inform Client of any adjustments to costs and to timelines. In the unlikely event due to circumstances beyond Hitech’s control, including those as may be specified in this Agreement, Hitech has to make any changes in the Services or the manner of their performance, Hitech shall notify Client at the first opportunity through a Change Order, and shall use all reasonable efforts to keep such changes to a minimum. It is agreed however, that Hitech may charge Client for any additional work performed by Hitech as a result of such unforeseen changes.

1.4. Marketing. Hitech may make reference to this Agreement, the nature of the Services to be performed, and may use Client’s company name and logo for marketing and recruitment purposes provided that Hitech maintains the confidentiality of Client’s information as stipulated in this Agreement.

1.5. Independent Contractor. Neither Party is an employee of the other Party, and the Parties are and shall remain independent of each other. Nothing in this Agreement will be deemed to create an agency, partnership, or joint venture between the Parties. Neither Party has authority to bind the other Party or

incur any obligation or liability on behalf of the other Party, or otherwise act on behalf of the other Party.

2. CLIENT RESPONSIBILITIES

2.1. Input to Services. Client agrees to perform all of the tasks assigned to Client as set forth in this Agreement and to provide all necessary training (as related to Client's specific software, systems, etc.), guidance, inputs, assistance, and cooperation to Hitech in order to enable Hitech to complete the Services efficiently and within the timeframes required. Client shall obtain all permissions, consents, licences, or access that Hitech may need to perform Services including providing Hitech with all relevant information, and material for that purpose.

2.2. Requests for Information (RFI). Hitech may require additional input or clarification on an on-going basis, to enable Hitech's performance of the Services. Client shall cooperate with Hitech's reasonable requests for information, training, and support and shall promptly respond to Hitech. Client understands that performance times may be delayed depending on the time it takes Client to respond to a Hitech's RFI.

2.3. Acceptance. Unless otherwise specified in the SOW, Services will be deemed to be satisfactory and to have been accepted by Client unless within five (5) days after submission of any deliverables to Client or performance of Services by Hitech, Client gives Hitech written notice, in the form of an email to the project manager, of specific aspects of deliverables or Services which do not meet requirements as indicated in the SOW. Upon receipt of such written notice, Hitech will use commercially reasonable efforts to make such changes as will be required to correct any deficiencies. Hitech, however, shall not be required to address any issues arising from: (a) Client's use of equipment, software, or Services in a manner which is not expressly recommended by Hitech; (b) Client's unauthorized changes to the

configuration or set up of affected equipment, software or Services; (c) Client's prevention of Hitech from performing required maintenance or updates; (d) use of Services with unsupported equipment, software or other services; or (e) use of Services for any unlawful purposes including infringement of any third party's intellectual property or other rights.

2.4. Hitech are not be liable for any delay or inability to provide the Services if this is caused by Client's failure to comply with the provisions of this Section (including all sub-clauses thereof).

2.5. If Client unduly delays in providing the necessary training, guidance, inputs, assistance, cooperation, or other requested information as provided in this Section, Hitech may at its option, terminate the Services.

3. COMPENSATION AND PAYMENT

3.1. Fees. Client will pay Hitech for the Services in accordance with the fee rates whether fixed, hourly, milestone-based, or some combination thereof (collectively "**Fees**") and other terms as stated in the SOW. All Fees shall be paid by electronic bank payment in the currency as stated in the SOW into the bank account nominated by Hitech in the SOW and exclusive of any applicable taxes or levies that may be imposed or charged by any competent authority.

3.2. Expenses. In addition to the Fees, Hitech can recover from Client the following expenses (collectively "**Expenses**"): (a) all reasonable and incidental expenses including, but not limited to, travelling expenses, hotel costs, subsistence and any associated expenses proximately related to the performance of Services; (b) the cost of any services provided by any third party(s) as required by Hitech for the performance of the Services; and (c) the cost of any materials required for the performance of the Services. Hitech shall obtain Client's prior written approval before incurring any of the aforesaid expenses.

3.3. Additional Services. In the event that Hitech renders at Client's request, any Services or other work not specifically included in the SOW, Hitech shall be entitled to be paid for such additional Services or additional work either at the Fee rate indicated in the applicable SOW, or Hitech's regular or other fee rates, whichever is higher.

3.4. Deposits. The SOW may provide that Client make a deposit of a certain amount of money in a specified account, in which case Client will be required to make such deposit payment in favour of Hitech ("**Deposit**") prior to Hitech's commencement of performance of Services. The treatment of Deposit will be specific to the nature of the Services and described in the SOW. If Client does not pay the Deposit as provided in the SOW, Hitech may at its option either refuse to perform the Services until the Deposit is received, or Hitech may terminate the Agreement as per the Termination clause.

- (a) The Deposit is non-refundable unless Hitech fail to provide the Services or is at fault for such failure (where the failure is not Hitech's fault, no refund will be made)
- (b) At termination, any Deposit will be offset against the final invoice or any outstanding amounts and the balance refunded to Client within sixty (60) days of termination.

3.5. Payment Terms.

- (a) Hitech will raise invoices in accordance with the payment schedule as provided in the SOW, or otherwise at the end of each calendar month.
- (b) Hitech invoices for Fees and Expenses, if any, shall be due and payable in full (without any offset) within 30 days of the date of invoice, unless otherwise provided in the SOW.
- (c) All such Fees shall be fully earned when due and non-refundable when paid.
- (d) Without limiting any other right or remedy that Hitech may have recovering interest on any unpaid Fees or Expenses, invoices not

paid by the due date shall bear interest on the amount outstanding, until paid in full. Interest will be charged at the rate of eight percent (8%) per annum, or at the maximum legal rate, whichever is lower.

- (e) If invoices are not settled in full as provided in this Section, Hitech may suspend any performing Services under this Agreement, and at Hitech's option, unilaterally decline rendering any future Services already agreed to, without further notice.
- (f) Time is of the essence for all payments under this Agreement, and in the event any payment due to Hitech is collected through legal counsel, or by way of court or other legal action, or through a collection agency, Client agrees to pay all costs of collection, including, without limitation, all court costs and reasonable attorneys' fees.

3.6. Annual Rate Review and Increase. Fees are subject to annual review and shall increase proportionately with the average of (1) the official consumer price index (CPI) published by Indian government; and (2) the official consumer price index (CPI) for Client Country as published by the World Bank at <https://data.worldbank.org/indicator/FP.CPI.TOTL.ZG?end=2019&locations=IN-US-EU-GB-AU&start=2015&view=chart>

4. SUB-CONTRACTING AND ASSIGNMENT

4.1. Hitech may at its own discretion, responsibility and cost, at any time assign, transfer, rotate, change, or subcontract to a third party, including delivering the work from a Hitech location other than as mentioned in this Agreement, or under an Hitech approved work from home model with all or any of its rights under this Agreement and the corresponding SOW. Hitech may also sub-contract or delegate in any manner any or all of its obligations to its parent company, Hitech iSolutions LLP or any third party. Client hereby specifically authorizes Hitech to transfer any and all of data disclosed by Client or obtained from Client (including

Personal Data and Service Data) irrespective of whether Hitech is acting as Data Controller or Data Processor, to such subcontractor(s) or affiliate company(s).

- 4.2. Hitech takes full responsibility for quality control and delivery of the Services. Hitech further undertakes that its sub-contractors and freelancers will fully comply with the non-disclosures and confidentiality terms.

5. TERM AND TERMINATION

- 5.1. **Term.** This Agreement will become effective on the date Customer agrees or accepts online the terms hereof, or when Services begin to be performed, whichever is the earlier. This Agreement will remain in force indefinitely until terminated by either Party in accordance with this Agreement.

5.2. Termination.

- (a) Subject to any initial term if defined in the SOW, or the conditions or notice period stated in the SOW, either Party shall be entitled to terminate this Agreement by giving sixty (60) days prior written notice to the other Party.
- (b) During such 60-day notice period irrespective of which Party has intends to terminate this Agreement, Client shall make payment to Hitech of any outstanding amount due, failing which the Agreement shall not be deemed terminated. If the termination is caused by Client after the Effective Date of this Agreement, then any amount received as a Deposit will be refunded after an offset against the Fees earned by Hitech for any Services performed.
- (c) Hitech can terminate the provision of the Services immediately if Client:
 - i. commits a material breach of its obligations under the Agreement; or
 - ii. fails to make payment of any amount due under the Agreement on the due date for payment; or

- iii. becomes or, in Hitech's opinion, is about to become, the subject of a bankruptcy order, or assigns in favour of its creditors at least fifty per cent (50%) of its assets; or

- iv. becomes subject to a voluntary or involuntary bankruptcy, winding-up, or liquidation proceeding and such proceeding is not at least stayed within 180 days from the date of filing;

- 5.3. **Automatic Expiration.** This Agreement will automatically expire without any written notice required, in the event that six (6) months have passed without any performance of Services by Hitech for Client.

6. CONFIDENTIALITY AND NON-SOLICITATION

To protect the business interests of both parties; during the period of this Agreement and for twenty-four (24) months thereafter, regardless of the reason or cause for termination, each Party shall comply with the sub-clauses in this Section.

- 6.1. The Parties will hold in strict confidence the other Party's information that is known or could reasonably be considered to be non-public, confidential, or proprietary ("Confidential Information") and will not use the Confidential Information other than to the extent that is necessary for that Party's performance as provided in this Agreement. Such Confidential Information shall include any information that relates to a Party's technology, techniques, software, hardware, finance, organization, sales, marketing, customer lists, customer contacts, business plans, and all other non-public information.
- 6.2. neither Party shall directly or indirectly engage in any conduct that will substantially diminish the value of the other Party's business including, without limitation: (a) solicit or attempt to solicit any business from any of the other Party's present customers, or direct prospects; or (b) offer employment to or hire any current employee, consultant, or subcontractor, of the other Party.

- 6.3. notify the other Party immediately, upon being approached by any current or past employee, consultant, or subcontractor of the other Party.

7. INTELLECTUAL PROPERTY

- 7.1. Hitech reserves all copyright and any other intellectual property rights which may subsist in any of its own proprietary goods, software, technology, knowhow or business processes (collectively "Hitech IP"), supplied or used in connection with the performance of the Services and become an integral part of the project deliverables Hitech delivers to Client. As such, subject to the terms of this Agreement, upon acceptance of project deliverables by Client, Hitech shall be deemed to have given Client a perpetual, irrevocable, worldwide, sublicensable, and royalty-free license to such Hitech IP. Notwithstanding, Client shall not nor attempt to, directly or indirectly, reverse engineer, copy, extricate, or otherwise remove such Hitech IP, or otherwise transfer or assign any right or interest in and to such Hitech IP as standalone technology, software, or solution. However, Client shall be free to transfer Client's rights, title, and interest to the project deliverables as a whole which include Hitech IP. Hitech reserves the right to take any appropriate action in law or at equity to restrain or prevent the breach of this provision by Client.
- 7.2. All copyright and any other intellectual property rights which may subsist in any goods, software, business process, product designs, building models, 3D or 2D models which are provided by Client to Hitech in connection with the provision of the Services will remain with Client.

8. LIABILITY AND INDEMNITY

- 8.1. Hitech's total liability under this Agreement and the corresponding SOW, whether in breach of any statutory duty, in tort, in contract, or for any other reason whatsoever, shall be limited as set out in this Section.

- 8.2. Hitech's total liability for any claim arising under or relating to this Agreement shall be limited to direct damages and shall not exceed the total amount of Fees payable by Client for the last three invoices for the Services.

- 8.3. Hitech are not liable (whether caused by our employees, agents or otherwise) in conjunction with our performance of the Services or the performance of any of our other obligations under this Agreement and the corresponding SOW for:

- (a) any indirect, special or consequential loss, damage, costs, or expenses; or
- (b) any loss of profits, loss of anticipated profits, loss of business, loss of data, loss of reputation or goodwill; business interruption; or, other third-party claims; or
- (c) any failure to perform any of our obligations if such delay or failure is due to any cause beyond Hitech's reasonable control; or
- (d) any losses caused directly or indirectly by any failure or breach by Client or in relation to Client's obligations; or
- (e) any losses arising directly or indirectly from the choice of Services and how or whether such Services meet Client's requirements or Client's use of the Services or any goods or software supplied in connection with the Services.
- (f) This indemnification shall survive the termination of the Agreement.

- 8.4. **Limitation of Action.** No action arising out of this Agreement, regardless of the form of action, may be brought by Client more than twelve (12) months after the occurrence of the event giving rise to any claim(s).

- 8.5. Nothing in this Agreement and the corresponding SOW shall limit or exclude Hitech's liability for death or personal injury caused by Hitech's gross negligence, wanton acts, or for any fraudulent misrepresentation, or criminal activity(s).

8.6. Insurance. Each Party will maintain reasonable amounts of insurance, which shall at least meet any limits required by law, for public liability, property damage, product liability, professional indemnity, employer's liability and workers compensation. Such aggregate amount of insurance shall not be less than One Million Dollars (\$1,000,000).

9. LAW & JURISDICTION

9.1. This Agreement shall be governed by and interpreted solely according to the law of the State of California without reference to any conflict of law provisions. All legal action, in court, arbitration, or otherwise, shall be initiated in Santa Clara County, California, and California State courts (or arbitrator(s)) shall have jurisdiction over all disputes.

9.2. Legal Fees. If legal action or other proceeding of any nature whatsoever is brought in connection with any dispute arising out of this Agreement, the prevailing Party shall be entitled to recover from the non-prevailing Party all legal fees and costs incurred by the prevailing Party in connection with such dispute in addition to any other relief that may be granted.

10. ARBITRATION

10.1. Other than as may be provided in this Agreement, any dispute, controversy or claim arising out of or in relation to this Agreement, including the validity, invalidity, breach or termination thereof, shall be resolved by binding arbitration under the rules and auspices of Judicial Arbitration and Mediation Services ("JAMS") as provided in the sub-clauses below:

- (a) The number of arbitrators shall be one (1);
- (b) The seat of the arbitration shall be Santa Clara County, California;
- (c) The arbitral proceedings shall be conducted in the English language;

(d) The decision of the arbitrator shall be in writing, and be based on of legal reasoning and legal doctrine;

(e) The arbitrator's award shall be final.

10.2. Within 15 days from receipt of the Notice of Arbitration by a Party, the other Party shall submit its response along with its defence(s) including any counterclaim or set-off defence. The time-limit with respect to the designation of an arbitrator shall be thirty (30) days. If the circumstances so justify, the arbitrator may extend or shorten the above time-limits. All procedures shall be expedited, and the dispute shall be decided on the basis of documentary evidence only.

10.3. Notwithstanding the above, the Parties may agree at any time to submit the dispute to mediation in accordance with the rules of JAMS. In the event that such mediation is unsuccessful, either Party may seek resolution of the dispute through binding arbitration as provided in this Section.

10.4. Notwithstanding the provision for arbitration, either Party may initiate proceedings in court with respect to any claims at equity.

11. DATA PROTECTION

11.1. When supplying the Services to the Client, Hitech may gain access to and/or acquire the ability to transfer, store or process personal data of employees of the Client or personal data pertaining to the Client's customers.

11.2. Both parties agree that where such processing of personal data takes place, the Client shall be the 'data controller' and Hitech shall be the 'data processor' as defined in the General Data Protection Regulation ((EU) 2016/679) (GDPR) as may be amended, extended and/or re-enacted from time to time, or under California and other federal privacy laws as applicable.

- 11.3.** For the avoidance of doubt, 'Personal Data', 'Processing', 'Data Controller', 'Data Processor' and 'Data Subject' shall have the same meaning as in GDPR. Further, Client hereby represents that it has the necessary approval from the individuals concerned with regard to their respective Personal Data being shared with Hitech pursuant to this Agreement.
- 11.4.** Hitech shall only process Personal Data to the extent reasonably required to enable it to supply the Services as mentioned in the Service Agreement or as requested by and agreed with Client, shall not retain any Personal Data longer than necessary for the performance of Service, and further, Hitech shall refrain from processing any Personal Data for its own purposes, or for the benefit of any third party.
- 11.5.** Hitech shall not disclose Personal Data to any third party(s) other than employees, directors, agents, sub-contractors, or advisors on a strict 'need-to-know' basis and only under the same (or more extensive) conditions as set out in the Agreement or to the extent required by applicable legislation and/or regulations.
- 11.6.** Client agrees and hereby authorizes Hitech to transfer Personal Data outside of the United States, or the European Economic Area, to enable Hitech to deliver the Services under this Agreement, and Client will comply with its obligations relating to GDPR and/or other applicable privacy laws in this regard.
- 11.7.** Hitech shall implement and maintain reasonable technical and organisational security measures as are required to protect Personal Data processed by Hitech on behalf of Client.
- 11.8.** Further information about Hitech's approach to data protection is specified in our Data Protection Policy, which can be found at, <https://www.hitechdigital.com/data-security-confidentiality/>.

12. GENERAL

- 12.1. Interpretation.** The Section headings or the headings of sub-clauses in this Agreement and any SOW, are for convenience only and do not affect their interpretation. Words imparting the singular number shall include the plural and vice-verse. Further, reference to any gender shall include the other gender and the neuter as applicable in the context.
- 12.2. Execution.** The Parties may execute this Agreement in multiple counterparts, each of which constitutes an original as against the Party that signed it, and all of which together constitute one agreement. The signatures of all Parties need not appear on the same counterpart. The delivery of signed counterparts by email or other electronic transmission that includes a copy of the sending Party's signature is as effective as signing and delivering the counterpart in person.
- 12.3. Survival of Terms.** The provisions of this Agreement which by their nature extend beyond the termination of the Agreement will survive termination or expiration of the Agreement, specifically the clauses related to confidentiality and payment.
- 12.4. Circumstances beyond a Party's control.** Neither Party shall be liable for any failure or delay in performance of its obligations where such failure or delay results from any cause that is beyond the reasonable control of that Party. Such causes include but are not limited to: industrial action, civil unrest, fire, flood, storms, earthquakes, hurricanes, acts of terrorism, acts of war, epidemics/pandemics, governmental action, communication and power line failures, or any other event that is beyond the control of the party in question. If the delay continues for a period of more than 90 days, either Party may terminate or cancel the Services to be carried out under the Agreement.

12.5. Severability. In case any one or more of the provisions of this Agreement is held invalid, illegal or unenforceable, each such provision shall be modified, if possible, to the minimum extent necessary to make it valid and enforceable, or if it cannot be so modified, then severed, and the remaining provisions contained in this Agreement shall not in any way be affected or impaired.

12.6. No Waiver. No delay, act or omission by a Party in exercising any right or remedy, or failure to enforce strict performance of any provision of this Agreement will be deemed a waiver of that right, or of any other right or remedy, nor stop the further exercise of any such right, or remedy against the same, similar, or other future breach of this Agreement.

12.7. Communication. All notices under these Terms and Conditions and the Service Agreement must be in writing and signed by, or on behalf of, the party giving notice (or a duly authorised officer of that party). Notices shall be deemed to have been duly given:

- (a) when delivered, if delivered by courier or other messenger (including registered mail) during the normal business hours of the recipient;
- (b) when sent, if transmitted by email and a successful transmission report or return receipt is generated;
- (c) on the fifth business day following mailing, if mailed by national ordinary

mail; or on the tenth business day following mailing, if mailed by airmail.

All notices under this Agreement must be addressed to the most recent address or email address notified to the other party.

12.8. Assignment. This Agreement is binding upon the Parties' respective representatives, successors, and assignees. Neither party shall transfer or assign this Agreement without the prior written consent of the other party. However, neither party shall unreasonably withhold consent to an assignment of this Agreement.

12.9. Export and Compliance. Each Party shall comply fully with all relevant regulations. Each Party will, at its own expense, comply with any applicable law, statute, administrative order, or regulation.

12.10. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter herein and supersedes all prior and contemporaneous representations and understandings, whether written or oral, with respect thereto. This Agreement may be modified only by a written addendum or change order signed by authorised signatories of both Parties. The terms of any invoice, purchase order or similar document will not modify this Agreement.

12.11. Modification. This Agreement may not be modified except in a writing executed by both Parties.

Customer's online acceptance or consent to the terms hereof or acceptance by execution of a corresponding Statement of Work, shall be acknowledgment that the terms of this MSA have been received and read and shall be considered to be the equivalent of execution of this Agreement by Customer.